

GAZETTE OF INDIA
EXTRAORDINARY
PART – III – SECTION 4
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SECURITIES AND EXCHANGE BOARD OF INDIA
NOTIFICATION
Mumbai, the 2nd April, 2018

**SECURITIES CONTRACTS (REGULATION) (STOCK EXCHANGES AND
CLEARING CORPORATIONS) (AMENDMENT) REGULATIONS, 2018**

No. LAD-NRO/GN/2018/04 - In exercise of the powers conferred by sections 4, 8A and 31 of the Securities Contracts (Regulation) Act, 1956 read with sections 11 and 30 of the Securities and Exchange Board of India Act, 1992, the Securities and Exchange Board of India hereby makes the following regulations to further amend the Securities Contracts (Regulation) (Stock Exchanges and Clearing Corporations) Regulations, 2012, namely –

1. These regulations may be called the Securities Contracts (Regulation) (Stock Exchanges and Clearing Corporations) (Amendment) Regulations, 2018.
2. These regulations shall come into force on October 1, 2018.
3. In the Securities Contracts (Regulation) (Stock Exchanges and Clearing Corporations) Regulations, 2012 –
 - (I) in regulation 2, in sub-regulation (1), clauses (fa), (ia) and (oa) shall be omitted.
 - (II) in regulation 29, in sub-regulation (1) –
 - (a) after the word and symbol “board,” and before the word “each”, the words and symbol “to the extent applicable,” shall be inserted;
 - (b) in clause (b), the word “and” shall be omitted;

(c) in clause (c), the symbol “.” Shall be omitted and the symbol and word “, and” shall be inserted;

(d) after clause (c), the following clause shall be inserted, namely –
“(d) product design.”

(III) in regulation 44C, the symbols and words “, including a commodity derivatives exchange,” shall be omitted.

(IV) regulation 44D shall be substituted with the following, namely –

“Obligation of Clearing Corporation in Commodity Derivatives.

44D. Every recognised clearing corporation providing clearing and settlement services for commodity derivatives shall ensure guarantee for settlement of trades including good delivery.”

Sd/-

**AJAY TYAGI
CHAIRMAN
SECURITIES AND EXCHANGE BOARD OF INDIA**

Footnote:

1. The Securities and Contracts (Regulation) (Stock Exchanges and Clearing Corporations) Regulations, 2012 were published in the Gazette of India on 20th June, 2012 vide F. No. LAD-NRO/GN/2012-13/07/13546.

2. The Securities and Contracts (Regulation) (Stock Exchanges and Clearing Corporations) Regulations, 2012 were subsequently amended –

(a) on 2nd September, 2013 by the Securities and Contracts (Regulation) (Stock Exchanges and Clearing Corporations) (Amendment) Regulations, 2013 vide No. LAD-NRO/GN/2013-2014/14/21/6463.

(b) on 8th September, 2015 by the Securities and Contracts (Regulation) (Stock Exchanges and Clearing Corporations) (Amendment) Regulations, 2015 vide No. LAD-NRO/GN/2015-16/016.

(c) on 11th January, 2016 by the Securities and Contracts (Regulation) (Stock Exchanges and Clearing Corporations) (Amendment) Regulations, 2016 vide No. SEBI/LAD-NRO/GN/2015-16/29.

(d) on 7th March, 2016 by the Securities and Contracts (Regulation) (Stock Exchanges and Clearing Corporations) (Second Amendment) Regulations, 2016 vide No. SEBI/LAD/NRO/GN/2015-16/037.

(e) on 29th August, 2016 by the Securities and Contracts (Regulation) (Stock Exchanges and Clearing Corporations) (Third Amendment) Regulations, 2016 vide No. SEBI/L.A.D.-N.R.O./G.N./2016-17/011.

(f) on 12th January, 2017 by the Securities and Contracts (Regulation) (Stock Exchanges and Clearing Corporations) (Amendment) Regulations, 2017 vide No. SEBI/LAD/NRO/G.N./2016-17/020.

(g) on 15th February, 2017 by the Securities and Contracts (Regulation) (Stock Exchanges and Clearing Corporations) (Second Amendment) Regulations, 2017 vide No. SEBI/LAD/NRO/G.N./2016-17/033.

(h) on March 6th, 2017 by the Securities and Exchange Board of India (Payment of Fees and Mode of Payment) (Amendment) Regulations, 2017 vide notification no. SEBI/LAD/NRO/GN/2016-17/037 read with notification no. SEBI/LAD/NRO/GN/2016-17/38 dated March 29, 2017.

(i) on May 29th, 2017 by the Securities and Contracts (Regulation) (Stock Exchanges and Clearing Corporations) (Third Amendment) Regulations, 2017 vide No. SEBI/LAD/NRO/G.N./2017-18/3.